confines its activities in the anti-corruption field to offences committed by the employees of the Central Government and Union Territories and their public sector undertakings. It takes up investigation of conventional crimes like murder, kidnapping, rape etc., on reference from the state governments or when directed by the Supreme Court/High Courts.

The CBI acts as the "National Central Bureau" of Interpol in India. The Interpol Wing of the CBI coordinates requests for investigation-related activities originating from Indian law enforcement agencies and the member countries of the Interpol.

Provision Of Prior Permission

The CBI is required to obtain the prior approval of the Central Government before conducting any inquiry or investigation into an offence committed by officers of the rank of joint secretary and above in the Central Government and its authorities.

However, in 2014, the Supreme Court held as invalid the legal provision that makes prior sanction mandatory for the CBI to conduct a probe against senior bureaucrats in corruption cases under the Prevention of Corruption Act.[4]

A Constitution Bench held that Section 6A of the Delhi Special Police Establishment Act, which granted protection to joint secretary and above officers from facing even a preliminary inquiry by the CBI in corruption cases, was violative of Article 14.

Writing the judgment, the CJI said, "Corruption is an enemy of [the] nation and tracking down a corrupt public servant, howsoever high he may be, and punishing such person is a necessary mandate under the PC Act, 1988. The status or position of a public servant does not qualify the person from exemption from equal treatment. The decision-making power does not segregate corrupt officers into two classes as they are common crime doers and have to be tracked down by the same process of inquiry and investigation."

CBI vs STATE POLICE

The role of the Delhi Special Police Establishment (a division of CBI) is supplementary to that of the state police forces. Along with state police forces, the Delhi Special Police Establishment (DSPE) enjoys the concurrent powers of investigation and prosecution for offences under the Delhi Special Police Establishment Act, 1946. However, to avoid duplication and overlapping of cases between these two agencies, the following administrative arrangements have been made:

1. The DSPE shall take up such cases which are essentially and substantially concerned with the Central Government's affairs or employees, even if they also involve certain state government employees.

2. The state police force shall take up such cases which are substantially concerned with the state government's affairs or employees, even if they also involve certain Central Government employees.

3. The DSPE shall also take up cases against employees of public undertakings or statutory bodies established and financed by the Central Government.

[1]This information is obtained from the official website of the Central Bureau of Investigation, Government of India.